

BEFORE HER HONOR: SIE-A-NYENE G. YUOH CHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE ... ASSOCIATE JUSTICE
BEFORE HIS HONOR : YUSSIF D. KABA ASSOCIATE JUSTICE
BEFORE HIS HONOR : YAMIE QUIQUI GBEISAY, SR.... ASSOCIATE JUSTICE
BEFORE HER HONOR: CEATNEH D. CLINTON-JOHNSON.....ASSOCIATE JUSTICE

Gulu Gwesa and Mulbah Gwesa, by and)
Thru their attorneys-in-fact, C. Lawuo)
Gwesa, also of the City of Paynesville)
Montserrado County, Liberia..... Appellees)

Jonathan Boiboi of the City of Paynesville,)
 Montserrado County, Republic of Liberia)
 Objector)

Objection to the Board of Arbitration Report

Gulu Gwesa and Mulbah Gwesa, by and)
Thru their attorneys-in-fact, C. Lawuo)
Gwesa, also of the City of Paynesville)
Monterrado County, Liberia.. Respondents)

Gulu Gwesa and Mulbah Gwesa, by and)
Thru their attorneys-in-fact, C. Lawuo)
Gwesa, also of the City of Paynesville)
Montserrado County, Liberia..... Plaintiffs)

Action of Ejectment

Delivered: August 14, 2025

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report that led to the judge's decision is the result of an arbitration ordered by the court after the parties reached a concession during a hearing on a motion for arbitration stemming from an ejectment action initiated by Gulu Gwesa and Mulbah Gwesa, through their attorneys-in-fact, C. Lawuo Gwesa, also of Paynesville City, Montserrado County, Liberia. The appellees, in their ejectment complaint, claimed that they are the rightful owners of a parcel of land comprising two lots in the 12th Road Community, Paynesville, which they purchased in 1995. They further stated that the appellant, Jonathan Boiboi, without any legal title or right, wrongfully and illegally encroached upon the appellees' property, thereby dispossessing them of their land. The appellees attached a copy of their warranty deed from Abraham L. Howard to Gulu Gwesa and Mulbah G. Gwesa.

The appellant, in his answer to the appellees' complaint, denied encroaching on the appellees' property. He stated that he is occupying two lots of land belonging to himself and his brother, which they purchased from the same grantor, Mr. Abraham Lincoln Howard, who also granted land to the appellees. He also noted that both the property of the appellees and the appellant was surveyed by the same surveyor, Mr. Augustine Ricks. The appellant further claimed that the deed presented by the appellees was not the same deed prepared by Mr. Ricks when they purchased their land. The appellant attached to his answer a warranty deed from Abraham Lincoln Howard to Abraham B. Boiboi (his brother) for one lot, and another warranty deed from Howard to Jonathan B. Boiboi for a different lot. The appellant requests that the appellees' complaint be dismissed.

The appellees filed their reply denying that the appellees' deed is a result of fraud and reaffirmed their claim that the appellant is encroaching on part of the appellees' property. Once pleadings were complete, the appellees submitted a motion for arbitration to the court. When the hearing was called, the appellant's counsel agreed to the appellees' request for arbitration. The court, following legal procedures, appointed and qualified an arbitration board consisting of a representative from each party and a chairman, nominated by the Ministry of Lands, Mines, and Energy. As

instructed by the court, the arbitration board conducted a survey and later submitted a majority report to the court, signed by the chairman and the appellees' representative. The report concluded that the appellant encroached on the appellees' property by ten (10) feet. When the report was read aloud in court, the appellant entered an exception and filed a formal objection to it.

In its objection, the appellant claimed, among other things, that the alleged arbitration report and the award contained within it are false and misrepresent the facts and reality regarding the disputed land; that the majority arbitrators failed to recognize that the Ministry of Public Works expanded the 20-foot alley shown on the appellees' 1995 deed to a 30-foot alley, thereby reducing the width of the appellees' property from 82.5 feet to 72.5 feet; that this 10-foot reduction in the appellees' property is what they are attempting to compensate for by claiming 10 feet from the appellant's property; and that the majority of the board members ignored the court's instructions, thus making their report biased, false, and misleading. The appellant, therefore, requests that the report be invalidated.

In its response to the Objector's objection, the appellees argued that the appellant failed to provide any legal grounds to set aside the arbitration report; and that the majority members of the board acted within the court's instructions and the rules governing surveys when they considered the deeds of the parties and the neighboring property owner in determining whether or not the appellant encroached on the appellee's property. They further stated that the appellant did not demonstrate any interest in the parties' dispute by the arbitrators. Therefore, the appellees request that the court affirm the majority of the arbitrators' report.

In affirming the arbitrators' report, in its ruling on the appellant's objection, the court held among other things the objector failed to show irregularities perpetrated by the majority of the arbitrators and that it was not error for the arbitrators to take into consideration during the conduct of the arbitration the title deed of adjoining property owner; and that sufficient evidence was available to the arbitrators in support of their determination and conclusion reach in their report. After confirming and affirming the report, the court, in

keeping with the recommendation of the majority members of the board of arbitration, awarded the disputed property to the appellees. To this determination, the appellant noted exceptions and subsequently announced an appeal to this Court of *last resort*.

Considering the several allegations of error raised by the appellant and attributed to the trial judge in its bill of exceptions, this Court will base its decision on counts twelve (12), thirteen (13), and fourteen (14), which present the grounds for setting aside an arbitration award as provided by Chapter 64 of the Civil Procedure Law. Stated verbatim, the appellant averred as follows:

"12. That, Your Honor, asserted that the fact that Marilyn Kerkulah is an adjoining property owner, she has a vested interest in the case at the bar, and as such, the chairman was not in error when he elected to use her title deed as the prominent deed for the Arbitration survey instead of the title deeds of the parties to the suit, which deeds he had in his possession and on his person during the arbitration survey. The appellant maintains that this assertion is wrong in law, and especially in arbitration proceedings. The crux of the land dispute is a purported 10ft encroachment which the appellees maintains is the degree of the appellant's encroachment into their parcel of land, while the appellant maintains that the appellees' original title deed bears 20 foot alley which was later expanded to 30 feet by the Ministry of Public Works. How then, can a 2003 title deed speak to such 20 foot alley of 1995 prior to the additional 10ft expansion by the Ministry of Public Works? Which 10ft expansion was done sometime prior to the 2003 land purchase of Marilyn Kerkulah whose deed bears the current reality of a 30-foot alley, that the 1995 deed would not bear except for the 20-foot alley which was prior to the additional 10ft expansion by the Ministry of Public Works. So for the chairman and the appellees' technical representative to have used it as the principal or prominent deed was an error and a violation of Arbitration Survey proceedings and for His Honor Judge J. Kennedy Peabody to have included it in his final ruling and judgment to the effect that the chairman was not in error to have used it is a reversible error.

13. That further to count twelve (12), the appellant maintains that a careful perusal of the case file and specifically the appellees' title deed reveals that the 20-foot alley is being described as part of the metes and bounds of the appellees' title deed as follows:

'commencing at the point 20 feet from the Northwestern corner of the parcel of land bearings:-"A.K.G" running North 30 degree East to a point; thence running on magnetic bearings;-North 30 degree East 82.5 feet to a point: thence, running South 60 degree East 264 feet to a point thence ruing South 30 degree West 82.5 feet parallel with a 20 foot alley to a point: thence running North 60 degree West 264 feet parallel with a 20 foot proposed alley to the point of commencement and containing two (2) lots of land and no more.

14. That your Honor errs when in your final ruling and judgment you ignored the fact that the 20ft alley is woefully and plainly being described on the appellees' title deed when bounding and describing the metes and bounds of the said appellees' parcel of land. Which fact the Chairman and his accomplice and collaborator appellees' technical representative sought to deny, ignore, and knowingly hide or cover up by electing and neglecting to use the parties' title deeds with the 20-foot alley reflected thereon as the principal instrument or deeds for the arbitration survey, and instead elected to use Marilyn Kerkulah's 2003 title deed which was reflected on it the newly expanded 30-foot alley instead of the original 20-foot alley which is being woefully described on the appellees' title deed. Hence, the error needs to be corrected.

The key issue arising from the record review in this case is whether the trial judge erred in affirming the majority members of the arbitrator's report, thereby ruling the appellant liable in ejectment.

There is no challenge that, when pleadings rested, the parties agreed to settle their dispute through arbitration and to be governed by Chapter 64 of the Civil Procedure Law. Therefore, for this Court to set aside the award returned by the majority member of the boards, as confirmed by the trial judge, it must be based on the grounds stated under Section 1:64.11 of the Civil Procedure Law Revised Code. Caption: "vacating an award". It is provided under said law as follows:

§ 64.11. Vacating an award.

1. Grounds for vacating. Upon written motion of a party, the court shall vacate an award where:

- (a) The award was procured by corruption, fraud, or other undue means;
or
- (b) There was partiality in an arbitrator appointed as a neutral, except where the award was by confession; or there was corruption or misconduct in any of the arbitrators; or
- (c) An arbitrator or the agency or person making the award exceeded his powers or rendered an award contrary to public policy; or
- (d) The arbitrators refused to postpone the hearing upon sufficient cause being shown therefor or refused to hear evidence material to the controversy, or otherwise conducted the hearing contrary to the provisions of sections 64.5 or 64.6.

The appellant argued that the majority members of the arbitration board exceeded their authority by going beyond the scope given by the trial court to only use the deed(s) pleaded by the parties and filed in the court's records as their basis. The appellant contended that the board ignored this order and instead used a title deed from an adjoining property owner that included a 30-foot alley, which was not pleaded. This use of the adjoining property owner's deed led the majority of the members to conclude that there was a 10-foot encroachment.

The records showed that the appellees admitted that Madam Marilyn Kerkulah's 2003 title deed was used by the arbitrators during the survey, thereby supporting the appellant's claim. In the judge's ruling, the judge stated that the chairman of the arbitration board was not wrong to use an adjoining property owner's deed because such an owner is an interested party, even if not a party before the court. We certainly disagreed with this conclusion. In arbitration proceedings based on pleadings before a court, arbitrators are limited to using deeds or instruments pleaded by the parties during the exchange of pleadings, except otherwise agreed upon by the parties in their agreement to submit to arbitration. Any documents or instruments not pleaded or ordered by the court to be part of the arbitration survey cannot be used by the arbitrators, even if no objections are raised by any party. Extrinsic evidence can only be used if directed by the judge or stipulated in the arbitration agreement; in such cases, the surveyor is free to use it, and the findings can be enforced against the parties. In this case, the arbitrators were instructed to use only the pleaded instruments of the parties, and nothing more. Any act contrary to the judge's order and the requirements under Chapter 64 of the Civil Procedure Law renders the award legally void.

The appellant argued that the arbitrators ignored the deeds pleaded by the parties which described the 20ft alley on the parties' title deed when bounding and describing the metes and bounds and that had it been used by the arbitrators, the report would have been different and the conclusion reached would have shown no 10ft encroachment. While we do not agreed or disagreed with this self-proclaimed conclusion of the appellant, we are

reluctant to accept the report of the arbitrators not only for the use of a third party deed not pleaded during the survey, but the failure to use the pleaded deeds of the parties.

In the instructions to the board of arbitration, Judge Scheaplor R. Dunbar, then presiding over the Civil Law Court, qualified and instructed the arbitrators as follows:

"The board is further ordered to **USE ONLY** the deed(s), diagram(s), and adjudicated map (that is, if the area is in an adjudicated area) that were pleaded by the parties and placed in the court's file as their working tool(s). The chairman of the Board is further instructed to issue a Notice of Survey to members of the Board of Arbitration and the adjacent parties stating the date and time of the survey/arbitration exercise. The said survey notice must be filed with the clerk's office/court for further reference".

The judge's instruction is clear and unambiguous. The arbitrators were duty-bound to follow it without any discretion otherwise. Allowing the arbitrators to use the adjoining property owner's deed, which was not pleaded during the survey, solely because she is an adjoining property owner, is a clear departure from the precedent of this Court and the clear and unambiguous instruction of Judge Dunbar. An adjoining property owner is only a witness or participant during a survey, and the purpose is to allow them to protect their property. Full participation is not mandatory, as they cannot be bound by the outcome.

Certainly, the arbitrators exceeded their authority by allowing a third-party deed to serve as the guiding document for the survey. This is even more evident since the third-party deed was executed in 2003, eight years after the deeds between the parties were signed in 1995, and the alley shown on the parties' deed is 20 feet wide, while the alley in the third-party deed is 30 feet.

This Court, in the case *Sophonria Richard-Townsend v The Intestate Estate of Momo Mbolon*, Supreme Court Opinion, October Term 2022, held that "...we must emphasize that where an action is instituted before a court, an agreement to submit the claims raised in the pleading to arbitration can only be based on the instruments pleaded by the parties, except where

otherwise provided in the arbitral agreement...". In that case, this Court concluded that the trial court did not err in excluding instruments that were never pleaded nor provided for by the arbitral agreement to give notice to the parties. In the present case, the arbitrators elected to use Madam Marilyn Kerkula's deed of 2003 to determine the extent of enrichment between the parties to the arbitration, although none of the parties pleaded the deed, included it in the arbitral agreement, or was sanctioned by the judge in his instructions to the arbitrators. Furthermore, while the alley shown in the deeds of the parties to the dispute is 20 feet, the same alley as depicted in Madam Kerkula's deed measures 30 feet. Clearly, the use of Madam Kerkula's deed could not resolve the issue of encroachment between the parties in this matter.

It being the law under 1:64.11(c) that an award can be vacated if "*An arbitrator or the agency or person making the award exceeded his powers or rendered an award contrary to public policy...*", the arbitrators committed a reversible error when they elected to use the deed of a third party at the exclusion of the deeds pleaded by the parties in determining the alleged encroachment by the appellant. The matter ought to be returned to the trial court with instructions that the arbitration be based on the instruments pleaded by the parties.

WHEREFORE AND IN VIEW OF THE FOREGOING, the arbitration award is set aside and the final ruling of the Sixth Judicial Circuit, Civil Law Court, Montserrado County affirming same is hereby reversed, and the matter remanded with instructions to the trial court to constitute a new board of arbitration to conduct arbitration proceedings anew. The Clerk of this Court is ordered to send a Mandate to the court below commanding the judge presiding therein to resume jurisdiction over this case and give effect to the Judgment of this Opinion. Costs to abide final determination. AND IT IS HEREBY SO ORDERED.

WHEN THIS CASE WAS CALLED FOR HEARING, COUNSELLOR JEROME B. KOLLEH APPEARED FOR THE APPELLANT. COUNSELLORS MORRIS Y. MASSAQUOI AND EDWARD W. FAHNBULLEH APPEARED FOR THE APPELLEES.